

24PR00286 Estate of Efren Gonzales

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-06-17

Motion: Petition for Final Distribution

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Tentative Ruling: Estate of Efren Gonzales

Case Number

24PR00286

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 06/17/2026 - 09:30

Nature of Proceedings

Petition for Final Distribution

Tentative Ruling

Probate Notes:

Appearances required.

After review of the Supplemental Declaration filed on March 24, 2026, the following is noted for the Court at the hearing:

Extraordinary Fees are still excessive. Petitioner's attorney requested extraordinary fees, stating only two activities as extraordinary work: 1) Preparation of an Unlawful Detainer action, and 2) extensive repair of estate real property in preparation for sale. While the first constitutes extraordinary work, the second does not, and the requested fees connected to that activity should be denied because attorney for petitioner did not submit any support for those fees that is required by the rules of court, and prior precedent.

Payment of extraordinary fees is not guaranteed, and the Court has wide discretion to decide whether to allow extra compensation, even when services of an extraordinary nature are rendered. (CRC, Rule 7.703(a). See also *In re Fulcher's Estate* (1965) 234 Cal.App.2d 710, 718 ["The general rule is that the probate court has a large discretion in the allowance of fees for extraordinary services rendered on behalf of the estate."] "[T]he burden of proving the necessity for the services is on the representative claiming extraordinary fees for himself and his attorney." (Ibid.)

When extraordinary compensation is requested for the personal representative or attorney in Prayer, allegations must contain enough facts for the Court to exercise discretion pursuant to Probate Code section 10811 and CRC, Rule 7.703. A request for extraordinary compensation must include a statement of facts on which the request is based.

Generally, the statement of facts must include the following information (Cal Rules of Ct 7.702):

Nature and difficulty of the tasks performed;

Results achieved;

Benefit of the services to the estate;

Specification of the amount requested for each category of services performed;

Hourly rate of each person performing services and the hours spent by each;

Detailed description of services performed demonstrating productivity of hours spent; and

Estimated ordinary compensation, if the petition is not part of a final account or report.

That was not submitted in this case.

Further, the following information should be added:

Expertise, experience, and professional standing in the community of the person performing services (including not only the attorney requesting extraordinary compensation, but also the qualifications of any paralegals supervised by the attorney who performed extraordinary services); and

Size of the estate and length of administration.

As stated in the probate notes previously, the sale of real property is an ordinary and usual occurrence in the administration of a decedent's estate, thus does not automatically warrant extraordinary fees, even when work is performed to remedy waste. Unless circumstances during the sale of real property require the estate to incur "legal services" not normally needed during the sale and escrow process, the high value of real estate in this state generates a statutory fee award that is usually sufficient to compensate the personal representative and the attorney. This is especially true when a real estate agent is used to effectuate the sale. The standard courts use is "legal services in connection with the sale of property held in the estate." (CRC, Rule 7.703(c)(1).)

There were no legal services required in this case to remedy the waste that was caused to the real property, besides the preparation of an unlawful detainer action, which is most certainly extraordinary in nature.

The Court may consider that the statutory fee calculated on an estate where the decedent's personal residence that was sold for \$500,000 is reasonable compensation, because no "legal services" were required to effectuate the sale of the property, other than brief contract review and associated tasks, and the policy behind statutory fee awards includes strong consideration of the complication of larger estates than that of smaller estates. (In re Buchman's Estate (1955) 138 Cal.App.2d 228, 235. See also Estate of Getty (1983) 143 Cal.App.3d 455 [discussing in dicta that massive statutory compensation can be sufficient to cover unexpected intricacies in estate administration]; and Estate of Hilton (1996) 44 Cal.App.4th 890, 912-16 [citing In re Walker's Estate (1963) 221 Cal.App.2d 792, 795] for the proposition that probate courts can disallow all extraordinary fees claims if they find statutory compensation sufficient, keeping in mind the legislature's policy of subsidizing fees in more complicated estates with those easily earned in less complicated estate ["The Legislature merely determined, in substance, that any undercompensation involved in handling small estates would be equitably adjusted in the long run by overcompensation in handling larger estates."].)

As a result of the above authority, and because the efforts spent on remedying waste to the estate was not legal in nature, but clerical at best, it is recommended the Court deny the fees associated with the repairs of the home to ready it for sale, and only approve the fees expended in the preparation of the unlawful detainer.

Appearances:

The court is open to the public for court business. The court is also conducting hearings via Zoom videoconference.

Meeting ID: 161 956 1423

Passcode: 137305

Judges

Judge Denise M. Hippach

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